

25STCV20069 25STCV20069

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Case Number: 25STCV20069 Hearing Date: August 12, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: May

12, 2026

CASE NAME: Charlene

Egbe v. Jason Hamilton, et al.

CASE NO.: 25STCV20069

DEMURRER TO

FIRST AMENDED COMPLAINT WITH MOTION TO STRIKE

MOVING PARTY: Defendant

Integrative Surgical Associates Group, LLC

RESPONDING PARTY(S): Plaintiff Charlene Egbe

REQUESTED RELIEF:

1. Demurrer

to the entire FAC as uncertain and for failing to state sufficient facts;

2. Demurrer

to the first, second, third, fourth, and fifth causes of action (separately)

for failing to state sufficient facts to constitute a cause of action and for uncertainty.

TENTATIVE RULING:

1. Demurrers

to the FAC are OVERRULED in full;

2. Motion

to strike is DENIED without prejudice;

3. ISAG

to file their answer within 14 days of this ruling.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On July 8, 2025, Plaintiff Charlene Egbe (Plaintiff) filed a complaint against Defendant Jason Hamilton (Defendant) with causes of action for medical battery. According to the complaint, Defendant performed unauthorized surgical procedures at his office on October 16, 2023 and December 10, 2024. Plaintiff alleges that Defendant performed the procedures without proper disclosure, without informed consent or preoperative planning, and other circumstances that violated Plaintiff's rights.

On December 3, 2025, Plaintiff filed the operative first amended complaint (FAC) changing Defendant Hamilton to Jason Hamilton, M.D., adding Defendants Osborne Head & Neck Institute, Inc., Integrative Surgical Associates Group, and Hamilton Facial Plastic Surgery, Inc. Plaintiff also added causes of action for: (2) negligence; (3) violation of Cal. Confidentiality of Medical Information Act; (4) invasion of privacy (public disclosure of private facts); and (5) intentional infliction of emotional distress.

On December 4, 2025, the court entered a protective order pursuant to the parties' request.

On January 6, 2026, Defendant Jason Hamilton, M.D. (Dr. Hamilton) filed the instant demurrer with motion to strike which the court OVERRULED and DENIED.

On March 18, 2026, Dr. Hamilton filed an answer to the FAC.

On April 24, 2026, Defendants Dr. Hamilton, Hamilton Facial Plastic Surgery, Inc., and Osborne Head and Neck Specialty Group, Inc. (erroneously sued as Osborne Head and Neck Institute, Inc.) filed an answer to the FAC.

On June 12, 2026, Defendant Integrative Surgical Associates Group, LLC (ISAG) filed the instant demurrer to the FAC.[1]

On July 30, 2026, Plaintiff filed oppositions to the demurrer and to a motion to strike. On August 5, 2026, ISAG filed replies in support of their demurrer and a motion to strike.

LEGAL STANDARD:

Meet and Confer

Prior to filing a demurrer, the demurring party is required to satisfy their meet and confer obligations pursuant to Code of Civ. Proc. §430.41, and demonstrate that they so satisfied their meet and confer obligation by submitting a declaration pursuant to Code of Civ. Proc. §430.41(a)(2) & (3). The meet and confer requirement also applies to motions to strike. (CCP § 435.5.)

Here, ISAG sent one meet and confer correspondence to Plaintiff on May 4, 2026. (Declaration of Joseph Broughton ¶¶ 5-6.) One letter is hardly sufficient meet and confer efforts. Still, insufficient meet and confer alone is not grounds to sustain or overrule a demurrer or the grant or deny a motion to strike. (CCP §§ 430.41(a)(4), 435.5(a)(4).)

Demurrer –

Sufficiency of Facts

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleadings alone and not the

evidence or other extrinsic matters. The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn) 147 Cal.App.4th at 747.)

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When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.) Courts also consider exhibits attached to the complaint and incorporated by reference. (See Frantz v. Blackwell (1987) 189 Cal.App.3d 91, 94 (Frantz).)

Demurrer

– Uncertainty

CCP § 430.10(f) provides that a party may demurrer to a pleading because: “The pleading is uncertain. As used in this subdivision, “uncertain” includes ambiguous and unintelligible.”

However, “demurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (Morris v. JPMorgan Chase Bank, N.A. (2022) 78 Cal.App.5th 279, 292.) “A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Chen v. Berenjian (2019) 33 Cal.App.5th 811, 822.) “A demurrer for uncertainty should be overruled when the facts as to which the complaint is uncertain are presumptively within the defendant’s knowledge.” (Ibid.)

Motion to Strike

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (CCP § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Id., § 436(b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Id. § 437.) “When the defect which justifies striking a complaint is capable of cure, the court should allow leave

to amend.” (Vaccaro v. Kaiman, (1998)
63 Cal.App.4th 761, 768.)

ANALYSIS:

Request for
Judicial Notice

The court GRANTS ISAG’s request for judicial notice of the
Civil Restraining Order filed June 12, 2025 in Los Angeles Superior Court Case
No. 25STRO03715. (Evid. Code § 452(d); See Kalnoki v. First American Trustee Servicing Solutions, LLC (2017) 8
Cal.App.5th 23,37.) However, the court only takes judicial notice of the
foregoing documents only as to “the existence, content and authenticity of
public records and other specified documents”; it does not take judicial notice
of the truth of the factual matters asserted in those documents. (Dominguez v. Bonta (2022) 87 Cal. App.
5th 389, 400.)

Demurrer

First Cause of
Action: Medical Battery

ISAG contends this claim is uncertain because it refers
collectively to all Defendants and that it is otherwise insufficiently plead as
to them because there are no facts as to ISAG’s involvement in a medical
battery.

Plaintiff argues that ISAG inappropriately raises factual
challenges inappropriately resolved now. She also argues that the uncertainty
argument fails because ISAG clearly understands the claims asserted against it
and the conduct at issue.[2]

Finally, she argues that she alleged Dr. Hamilton was ISAG’s agent, therefore
ISAG is vicariously liable for his actions.

ISAG reiterates their uncertainty argument on reply.

Like a claim for civil battery, the elements of a claim for
medical battery are: 1. The defendant intentionally did an act which
resulted in a harmful or offensive contact with the plaintiff’s person; 2.
The plaintiff did not consent to the contact; and 3. The harmful or offensive

contact caused injury, damage, loss or harm to the plaintiff. (Piedra v. Dugan (2004) 123 Cal.App.4th 1483, 1495 (Piedra).)

In the medical context, battery lies when the doctor “obtains consent of the patient to perform one type of treatment and subsequently performs a substantially different treatment for which consent was not obtained.” (Ibid.)

“[O]ne who gives informed consent to a surgery cannot recover for resulting harm under a theory of battery.” (Id. at p.1497.) However, a patient can place limits on the consent. (Ibid.) If the doctor exceeds the terms or conditions of the consent, then the doctor cannot rely on consent as a defense to battery. (Ibid.)

Medical battery due to violation of conditional consent also has three elements: 1. Consent was conditional, (2) the doctor intentionally violated the condition while providing treatment, and 3. The patient suffered resulting harm. (Id. at p. 1497-1498.)

Here, Plaintiff sufficiently stated this claim for pleading purposes.

Notably, Plaintiff alleges an agency relationship between all Defendants. First, Plaintiff alleges that ISAG “is a California entity involved in surgical services, patient intake, consent processing, and medical record handling for Hamilton’s procedures.” (FAC ¶ 10.) Second, she alleges she “signed additional consent documents under ISA[G]’s name based on Hamilton’s representations.” (Ibid.) Third, Plaintiff also alleges, generally, that “each Defendant was the agent, employee, representative, partner, joint venturer, or ostensible agent of each Defendant and acted within the course and scope of that relationship.” (FAC ¶ 16.) Additionally, she alleges that ISAG “controlled, directed, supervised, authorized, ratified, or failed to supervise the acts of Hamilton and the DOE Defendants.” (FAC ¶ 17.) Finally, she alleges each corporate Defendant “established, implemented, or negligently failed to implement policies relating to: a) surgical protocols; b) informed consent; c) staff participation in procedures; d) patient privacy and PHI protection; e) handling, storing, transmitting and releasing medical records; and f) preparation and review of legal filings containing patient information.” (FAC ¶ 18.) These allegations are sufficient to defeat ISAG’s uncertainty demurrer because there are no affirmatively plead specific allegations contradicting these general allegations. (Garton v. Title Ins. & Trust Co.

(1980) 106 Cal.App.3d 365, 376 ["Generally, an allegation of agency is an allegation of ultimate fact and is, of itself, sufficient to avoid a demurrer."][3]

Next, Plaintiff alleged that Dr. Hamilton, an agent of ISAG, exceeded the conditional consent for her procedures. (FAC ¶¶ 20, 21, 24, 25, 45, 46, 49, 50.) Whether Dr. Hamilton turns out to be ISAG's agent is a factual dispute for future proceedings. This claim therefore survives the demurrer stage.

Accordingly, the court OVERRULES ISAG's demurrer to the first cause of action.

Second Cause of

Action: Negligence (including failure to obtain informed consent)

ISAG reiterates their uncertainty argument. They add that there are no facts that ISAG owed a duty to her or breached their duty.

Plaintiff argues this is a factual dispute. She also argues that she alleged ISAG participated in identified healthcare and administrative functions and that ISAG and the other corporate defendants independently failed to implement or follow policies governing consent, staff participation, supervision, records, and patient privacy. Finally, she argues that ISAG owed her a duty of care as a medical facility or medical corporation and breached that duty in various ways.

ISAG reiterates their uncertainty argument on reply.

The basic elements of a negligence claim are: a duty on the part of the defendant towards the plaintiff; defendant's breach of that duty; causation; and harm to plaintiff. (Kesner v. Sup. Ct. (Pneumo Abex, LLC) (2016 1 Cal.5th 1132, 1142.)

Here, Plaintiff sufficiently stated a negligence claim.

First, she alleged ISAG owed a duty of care as a healthcare provider, medical facility, and medical corporation. (FAC ¶¶ 10, 60.) Second, she alleged ISAG breached this duty in various ways ranging from exceeding consent, failing to obtain consent, withholding records, negligently handling records, and failing to protect her private information. (FAC ¶ 61.) These are the only two elements at issue. They survive the pleadings stage.

Accordingly, the court OVERRULES ISAG's demurrer to the second cause of action.

Third Cause of

Action: Violation of California Confidentiality of Medical Information Act (CMIA)

ISAG contends this claim fails for uncertainty, ISAG played no role in disclosing Plaintiff's private information, and there are no facts ISAG was a provider of health care as contemplated by the CMIA.[4]

Plaintiff argues she sufficiently stated this claim and ISAG otherwise improperly makes factual challenges.

ISAG reiterates their uncertainty argument on reply as well as reiterating that the judicially noticed documents show they had no role in the public court filing serving as the basis of this claim.

"No provider of health care shall disclose medical information regarding a patient of the provider without first obtaining an authorization, except as provided in subdivision (b) or (c)" (Heller v. Norcal Mutual Ins. Co. (1994) 8 Cal.4th 30, 38 (Heller) [citing Civ. Code § 56.10(a)].)

"Considered together, the statutory provisions require a health care provider to hold confidential a patient's medical information unless the information falls under one of several exceptions to the act." (Heller, supra, 8 Cal.4th at p. 38.) "

"Thus, in order to violate the act, a provider of health care must make an unauthorized, unexcused disclosure of privileged medical information. A provider is relieved from liability under the act if it can show that the disclosure is excepted either by the mandatory (§ 56.10, subd. (b)) or permissive (§ 56.10(c)(4)) provisions of the act, allowing disclosure of medical information under specified circumstances."

(Heller, supra, 8 Cal.4th at p. 38.)

Medical Information includes the patient's name, address, electronic mail address, telephone number, or social security number, or other information that, alone or in combination with other publicly available information, reveals the identity of the individual. (Civ. Code § 56.05(j)(1).)

Here, Plaintiff sufficiently stated this claim. First, she alleged that ISAG was a provider of health care under the statute. (FAC ¶ 66.) Second, she alleged ISAG made at least five unauthorized disclosures in public court filings without her authorization. (FAC ¶¶ 67-69.) As discussed above, whether Dr. Hamilton's disclosure was in the scope of his alleged agency is a future factual dispute inappropriate for resolution now.

Accordingly, the court OVERRULES ISAG's demurrer to the third cause of action.

Fourth Cause of
Action: Invasion of Privacy (public disclosure of private facts)

The arguments here are the same as for the third cause of action.

Generally, invasion of privacy requires: (1) a legally protected privacy interest; (2) reasonable expectation of privacy under the circumstances; and (3) defendant's serious invasion of privacy. Four distinct kinds of activities have been found to violate this privacy protection and give rise to tort liability: (1) intrusion into private matters; (2) public disclosure of private facts; (3) publicity placing a person in a false light; and (4) misappropriation of a person's name or likeness. To prevail on an invasion of privacy claim, the plaintiff must have conducted himself or herself in a manner consistent with an actual expectation of privacy. (*Moreno v. Hanford Sentinel, Inc.* (2009) 172 Cal.App.4th 1125, 1129; *Lachtman v. Regents of University of California* (2007) 158 Cal.App.4th 187, 213.)

The elements of a claim for public disclosure of private facts are: (1) public disclosure; (2) of a private fact; (3) which would be offensive and objectionable to the reasonable person; and (4) which is not of legitimate public concern. (*Nelson v. Tucker Ellis LLP* (2020) 48 Cal.App.5th 827, 843.)

For similar reasons articulated in the third cause of action, the court OVERRULES ISAG's demurrer to the fourth cause of action.

Fifth Cause of

Action: Intentional Infliction of Emotional Distress (IIED)

ISAG contends there are no facts of their conduct supporting this claim.

Plaintiff argues that she sufficiently stated this claim because ISAG engaged in a continuing course of conduct that extended beyond her medical treatment, including publicly disclosing her confidential medical information in publicly accessible court filings without authorization.

ISAG reiterates their uncertainty argument on reply as well as reiterating that the judicially noticed documents show they had no role in the public court filing serving as the basis of this claim.

In order to properly allege a cause of action for intentional infliction of emotional distress, a plaintiff must allege the following elements: "(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff suffered severe emotional distress; and (3) the defendant's extreme and outrageous conduct was the actual and proximate cause of the severe emotional distress." (Crouch v. Trinity Christian Center of Santa Ana, Inc. (2019) 39 Cal.App.5th 995, 1007.) "Conduct, to be 'outrageous,' must be so extreme as to exceed all bounds of that usually tolerated in civilized society." (Trevino v. Blue Cross California (1989) 209 Cal.App.3d 878, 883.) "Liability for intentional infliction of emotional distress 'does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities.'" (Hughes v. Pair (2009) 46 Cal.4th 1035, 1051.) "In order to avoid a demurrer, the plaintiff must allege with 'great[ly] specificity' the acts which he or she believes are so extreme as to exceed all bounds of that usually tolerated in a civilized community." (Vasquez v. Franklin Management Real Estate Fund, Inc. (2013) 222 Cal.App.4th 819, 832.)

Here, Plaintiff sufficiently stated a claim for IIED. The only issue is whether Plaintiff alleged extreme and outrageous conduct by ISAG.

For pleading purposes, she did. Plaintiff alleges both medical battery and disclosure of her private medical information for which ISAG is allegedly vicariously liable. (FAC ¶ 89.) Thus, this is sufficient for the pleadings stage.

Accordingly, the court OVERRULES ISAG's demurrer to the fifth cause of action.

Motion to Strike

As noted above, the court has not received the purported motion to strike. Without it, the court cannot evaluate the relief sought to render a coherent ruling.

Accordingly, the court DENIES the motion to strike without prejudice.

CONCLUSION:

For the foregoing reasons, the Court decides the pending motion as follows:

1. Demurrers

to the FAC are OVERRULED in full;

2. Motion

to strike is DENIED without prejudice;

3. ISAG

to file their answer within 14 days of this ruling.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: August 12, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court

[1]

There is no filed motion to strike in the court's record. There apparently is such a motion, though, because Plaintiff opposed it and ISAG filed a reply in support of it.

[2]

Alternatively, she requests leave to amend.

[3]

The court adopts this uncertainty analysis for the remaining causes of action.

[4]

ISAG improperly asks the court to interpret the truth of their RJN exhibit to show they were not involved in disclosing records.